

**PETITION FOR EXPUNGEMENT
FILED IN A CIRCUIT COURT –
ACQUITTAL/DISMISSAL**

Commonwealth of Virginia VA. CODE § 19.2-392.2(A)

Case No.

..... Circuit Court
CITY OR COUNTY

.....
STREET ADDRESS OF COURT

..... v. Commonwealth of Virginia
NAME OF PETITIONER

1. This petition to expunge the police and court records, including electronic records, relating to the charge(s) detailed in Part 2 (below) is based on § 19.2-392.2(A), as the petitioner was charged with the commission of a crime or offense AND (CHECK ONE)
- ☐ has been acquitted of the charge.
- ☐ a nolle prosequi of the charge has been taken or the charge has been otherwise dismissed, including dismissal by accord and satisfaction pursuant to Virginia Code § 19.2-151 or an original charge that was reduced or a charge that is dismissed after a plea or stipulation of the facts that would justify a finding of guilt pursuant to § 19.2-298.02.

2. I further state that:

Petitioner's date of birth is:

Petitioner's full name at the time of arrest:

Specific charge(s) to be expunged:

If matter was heard on appeal from General District Court, list applicable General District Court case number(s):
.....

☐ A copy of the warrant or indictment is attached to this petition. Underlying Case No.(s)

Date of arrest: Name of arresting agency:

☐ A copy of the warrant or indictment ☐ date of arrest or name of arresting agency is not reasonably available because (state reason this information is not available):
.....

Date(s) of final disposition of charge(s): Court disposing of charge(s):

The continued existence and possible dissemination of information relating to the arrest of the petitioner causes or may cause circumstances which constitute a manifest injustice to the petitioner. For this reason, I request that the police and court records, including electronic records, relating to the charge(s) be expunged and that a copy of any order of expungement be forwarded to the Department of State Police pursuant to § 19.2-392.2(K).

.....
DATE

.....
SIGNATURE OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

.....
PRINT NAME

.....
ADDRESS OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

.....
TELEPHONE NUMBER OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

.....
EMAIL ADDRESS OF ☐ PETITIONER ☐ ATTORNEY FOR PETITIONER

.....
VSB NUMBER OF ATTORNEY FOR PETITIONER (IF APPLICABLE)

☐ I certify that I provided the petitioner a certified copy of this petition. Hearing date and time:

.....
DATE

.....
CLERK

Checklist for petitioner:

- ☐ File completed PETITION FOR EXPUNGEMENT FILED IN A CIRCUIT COURT – ACQUITTAL/DISMISSAL in the circuit court of the county or city in which the charge(s) was disposed of and, if required by the clerk of the court, a completed COVER SHEET FOR FILING CIVIL ACTIONS, circuit court form CC-1416.
- ☐ Request that the Central Criminal Records Exchange electronically forward a copy of your Virginia criminal history record to the circuit court where the petition for expungement was filed.
- ☐ Have a copy of this petition served on the Commonwealth’s Attorney in the county or city in which the PETITION FOR EXPUNGEMENT FILED IN A CIRCUIT COURT – ACQUITTAL/DISMISSAL is filed.